

BEFORE THE FEDERAL MARITIME COMMISSION

CCMA, LLC	)	
	)	
<i>Complainant,</i>	)	
	)	
v.	)	
	)	FMC Docket No. 22-01
MAERSK A/S AND PORTS AMERICA	)	
CHESAPEAKE, LLC	)	
	)	
	)	
<i>Respondent.</i>	)	
	)	

**ANSWER OF RESPONDENT PORTS AMERICA CHESAPEAKE, LLC
TO THE AMENDED COMPLAINT**

Respondent Ports America Chesapeake, LLC (“PAC”), by and through its undersigned counsel, hereby answers the Amended Complaint (“Complaint”) of CCMA, LLC (“Complainant” or “CCMA”) as follows:

INTRODUCTORY STATEMENT AND GENERAL DENIAL

PAC denies the allegations in the introductory paragraph of the Complaint alleged against PAC, as they constitute legal conclusions to which no response is required, and to the extent a response is required, PAC denies the allegations. PAC lacks sufficient information or knowledge to enable it to respond to the allegations against the other Respondent, and therefore denies those allegations.

1. PAC lacks sufficient information or knowledge to enable it to respond to Paragraph 1 of the Complaint, and therefore denies the allegations.
2. PAC lacks sufficient information or knowledge to enable it to respond to the allegations of Paragraph 2 against the other Respondent and therefore denies the allegations.

3. PAC admits that it is a limited liability company organized and existing under the laws of the state of Delaware, registered with the Maryland Secretary of State as having a principal office address of 1209 Orange Street, Wilmington, DE 19801, and that PAC is a marine terminal operator within the meaning of the Shipping Act. The remainder of Paragraph 3 is denied.

4. Admitted.

5. The allegations in Paragraph 5 constitute legal conclusions to which no response is required. To the extent a response is required, PAC admits only that the Shipping Act speaks for itself, and denies the remainder.

6. PAC lacks sufficient information or knowledge to enable it to respond to the allegations of Paragraph 6 against the other Respondent and therefore denies the allegations.

7. Admitted.

8. Denied.

9. PAC lacks sufficient information or knowledge to enable it to respond to Paragraph 9 of the Complaint, and therefore denies the allegations.

10. PAC lacks sufficient information or knowledge to enable it to respond to Paragraph 10 of the Complaint, and therefore denies the allegations.

11. PAC admits only the second and third sentences of Paragraph 11. PAC lacks sufficient information or knowledge to enable it to respond to the first sentence of Paragraph 11 of the Complaint, and therefore denies the allegations.

12. Admitted as to PAC's operation of Seagirt Marine Terminal, but lacks sufficient information or knowledge to enable it to respond to the allegations concerning the "designation" to "process."

13. Admitted.

14. Admitted.

15. Admitted.

16. PAC admits that on December 27, 2019, PAC informed CCMA that CBP had found pests and seeds on two of the containers, but denies the remainder of Paragraph 16.

17. PAC admits that communications between CCMA and representatives of PAC occurred on January 2, 2020, denies the remainder of Paragraph 17 as to PAC, and lacks sufficient information or knowledge to enable it to respond to the allegations of Paragraph 17 against the other Respondent and therefore denies the allegations.

18. PAC admits that CBP issued an Emergency Action Notification (“EAN”) dated January 14, 2020 for two containers on the CCMA bill of lading. The EAN speaks for itself and the remainder of Paragraph 18 is denied.

19. PAC admits only that on January 15, 2020, a CCMA representative sent a copy of the EAN to PAC, and PAC denies the remainder of Paragraph 19.

20. The allegations in Paragraph 20 are vague and ambiguous, PAC lacks sufficient information or knowledge to enable it to respond to the allegations of Paragraph 20, and to the extent a response is required, PAC denies the allegations.

21. PAC admits the first and second sentences of Paragraph 21, but lacks sufficient information or knowledge to enable it to respond to the allegations with respect to the other Respondent, and to the extent a response is required, PAC denies the remaining allegations.

22. PAC admits the first sentence of Paragraph 22, but lacks sufficient information or knowledge to enable it to respond to the allegations with respect to the other Respondent, and to the extent a response is required, PAC denies the remaining allegations.

23. PAC lacks sufficient information or knowledge to enable it to respond to the allegations with respect to the other Respondent, and to the extent a response is required, PAC denies the allegations of Paragraph 23.

24. Admitted.

25. PAC admits that demurrages charges paid with respect to the containers, upon information and belief, totaled \$134,655. PAC denies the remainder of the allegations in Paragraph 25.

26. PAC admits paragraph 26 as to the allegations specifically with respect to PAC, but PAC lacks sufficient information or knowledge to enable it to respond to the allegations with respect to the other Respondent, and therefore denies the remaining allegations.

27. PAC admits only the total amount of demurrage, but denies the remainder of Paragraph 27.

28. The allegations in Paragraph 28 are vague and ambiguous, PAC lacks sufficient information or knowledge to enable it to respond to the allegations of Paragraph 28, and to the extent a response is required, PAC denies the allegations.

29. PAC admits the first sentence of Paragraph 29 only as to PAC. PAC lacks sufficient information or knowledge to enable it to respond to the allegations with respect to the other Respondent in the second sentence, and therefore denies the allegations in the second sentence. PAC admits that CCMA and PAC representatives communicated on January 3, 2020, including with respect to free time, but PAC denies the substance alleged in the third sentence. PAC objects to the fourth sentence as vague and ambiguous, but admits that communications regarding free time and demurrage occurred between CCMA and PAC representatives. The remainder of the allegations are denied.

30. The allegations in Paragraph 30 constitute legal conclusions to which no response is required. To the extent a response is required, PAC admits only that the Shipping Act speaks for itself, and denies the remainder.

31. PAC lacks sufficient information or knowledge to enable it to respond to the allegations with respect to the other Respondent, and to the extent a response is required, PAC denies the allegations of Paragraph 31.

32. Admitted.

33. PAC admits only that demurrage practices are related to receiving, handling, storing or delivering property, and that demurrage practices are in general charged on a normal, customary, and continuous basis. PAC denies the generality of the allegation to the extent it seeks to constitute a legal conclusion in this proceeding, to which no response is required, and PAC denies the remainder of the allegation as to itself, and the entirety of the allegation as to the other Respondent.

34. Denied.

35. Denied.

36. Denied.

37. Denied.

38. PAC objects to the allegations in Paragraphs 38, to which no response is required, and therefore PAC denies the allegations.

39. PAC also requests a hearing in Washington, D.C.

AS TO THE PRAYER FOR RELIEF

Complainant's Prayer for Relief contains legal conclusions and does not contain allegations to which an answer is required. To the extent that a response is necessary, PAC denies the allegations of the Complaint and denies the allegations praying for relief. PAC respectfully requests that after due consideration that the Complaint be dismissed with prejudice.

AFFIRMATIVE DEFENSES

1. Complainant has failed to state a claim upon which relief can be granted.
2. Complainant has failed to allege sufficient facts to state a claim for relief.
3. Complainant lacks standing.
4. Complainant did not suffer any actual injury.
5. Complainant fails to demonstrate causation for its alleged injury.
6. Complainant's alleged injury was the result of the actions of Complainant and/or its agents.
7. Complainant's claims are barred in whole or in part by the doctrines of waiver, estoppel and/or laches.
8. Complainant's claims are barred by the doctrine of unclean hands.
9. Complainant's claims are barred in whole or in part by reason of ratification, agreement, or consent to the alleged conduct by Complainant.
10. The actions of Respondents were reasonable under the circumstances.
11. Respondent reserves the right to assert any additional affirmative defenses that may develop through further discovery in this proceeding.

Respectfully submitted,

A handwritten signature in black ink, appearing to read "GAM", written over a horizontal line.

Gerald A. Morrissey III
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*Counsel for Ports America Chesapeake,
LLC*

Dated: March 7, 2022

VERIFICATION

I, Lori Berger, hereby verify as follows:

1. I am Vice President & Deputy General Counsel for Ports America.
2. I am authorized to make this verification on behalf of the Respondent Ports America Chesapeake, LLC.
3. I hereby verify that the facts contained in the foregoing answer and affirmative defenses are true and correct to the best of my knowledge, information, and belief.
4. I verify the foregoing under penalty of perjury under the laws of the United States.

Dated March 7, 2022

Respectfully submitted,

Lori Berger

Lori Berger

CERTIFICATE OF SERVICE

I HEREBY CERTIFY that on this 7th day of March, 2022, a true and correct copy of the foregoing Answer was served via electronic mail on:

Wayne R. Rohde, Esq. (wrohde@cozen.com)
Rachel Welford, Esq. (rwelford@cozen.com)
David K. Monroe, Esq. (dmonroe@gkglaw.com)
Kristine O. Little, Esq. (klittle@gkglaw.com)

A handwritten signature in black ink, appearing to read "Gerald A. Morrissey III", written over a horizontal line.

Gerald A. Morrissey III